

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1981

By: Ranson

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 1210.508C, as amended by Section 5, Chapter 411, O.S.L. 2024 (70 O.S. Supp. 2024, Section 1210.508C), which relates to the Strong Readers Act; changing the number and timing of reading screenings for kindergarten students; modifying the number and timing of screening instruments used for kindergarten students; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 1210.508C, as amended by Section 5, Chapter 411, O.S.L. 2024 (70 O.S. Supp. 2024, Section 1210.508C), is amended to read as follows:

Section 1210.508C. A. To identify students who have a reading deficiency including identifying students with characteristics of dyslexia, each student enrolled in kindergarten and first, second, and third grade in a public school in this state shall be screened ~~at the beginning, middle, and end of each school year~~ for reading skills including, but not limited to, phonological awareness, decoding, fluency, vocabulary, and comprehension. Kindergarten students shall be screened at the middle and end of the school year,

1 with the first screening provided no later than December. First,
2 second, and third grade students shall be screened at the beginning,
3 middle, and end of each school year. A screening instrument
4 approved by the State Board of Education, in consultation with the
5 Commission for Educational Quality and Accountability and the
6 Secretary of Education, shall be utilized for the purposes of this
7 section. In determining which screening instrument to approve, the
8 State Board of Education, the Commission for Educational Quality and
9 Accountability, and the Secretary of Education shall take into
10 consideration at a minimum the following factors:

11 1. The time required to conduct the screening instrument with
12 the intention of minimizing the impact on instructional time;

13 2. The timeliness in reporting screening instrument results to
14 teachers, administrators, and parents and legal guardians of
15 students; and

16 3. The integration of the screening instrument into reading
17 curriculum.

18 B. Beginning in the 2025-2026 school year, the State Board of
19 Education shall approve no fewer than two (2) screening instruments
20 for use at the middle and end of the school year for kindergarten
21 students and no fewer than three (3) screening instruments for use
22 at the beginning, middle, and end of the school year for first,
23 second, and third grade students for monitoring of progress and for
24 measurement of reading skills as required in subsection A of this

1 section. The screening instruments shall meet the following
2 criteria:

3 1. Assess for phonological awareness, decoding, fluency,
4 vocabulary, and comprehension;

5 2. Document the validity and reliability of each assessment;

6 3. Can be used for identifying students who are at risk for
7 reading deficiency and progress monitoring throughout the school
8 year;

9 4. Can be used to assess students with disabilities and English
10 language learners; and

11 5. Accompanied by a data management system that provides
12 profiles of students, class, grade level, and school building. The
13 profiles shall identify each student's instructional point of need
14 and reading achievement level. The State Board shall also determine
15 other comparable reading assessments for diagnostic purposes to be
16 used for students at risk of reading failure.

17 C. 1. Exemptions to the screening requirements of this section
18 may be provided to students who have documented evidence that they
19 meet at least one of the following criteria as related to the
20 provision of classroom instruction:

21 a. the student participates in the Oklahoma Alternate
22 Assessment Program (OAAP) and is taught using
23 alternate methods,
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- b. the student's primary expressive or receptive communication is sign language,
- c. the student's primary form of written or read text is Braille, or
- d. the student's primary expressive or receptive language is not English, the student is identified as an English learner using a state-approved identification assessment, and the student has had less than one (1) school year of instruction in an English-learner program.

2. A public school that grants an exemption pursuant to paragraph 1 of this subsection shall provide ongoing evidence of student progression toward English language acquisition with the same frequency as administration of screening assessments. Evidence may include, but not be limited to, student progression toward OAAP reading essential elements, proficiency in sign language and reading comprehension, and proficiency in Braille and reading comprehension.

D. 1. Students who are administered a screening instrument pursuant to subsection A of this section and are found not to be meeting grade-level targets shall be provided a program of reading instruction designed to enable students to acquire the appropriate grade-level reading skills. The program of reading instruction shall be based on scientific reading research and align with the

1 subject matter standards adopted by the State Board of Education. A
2 program of reading instruction shall include:

- 3 a. sufficient additional in-school instructional time for
4 the acquisition of phonological awareness, decoding,
5 fluency, vocabulary, and comprehension,
- 6 b. if necessary and if funding is available, tutorial
7 instruction after regular school hours, on Saturdays,
8 and during summer; however, such instruction may not
9 be counted toward the one-hundred-eighty-day or one-
10 thousand-eighty-hour school year required in Section
11 1-109 of this title,
- 12 c. assessments identified for diagnostic purposes and
13 periodic monitoring to measure the acquisition of
14 reading skills including, but not limited to,
15 phonological awareness, decoding, fluency, vocabulary,
16 and comprehension, as identified in the student's
17 program of reading instruction,
- 18 d. high-quality instructional materials grounded in
19 scientifically based reading research, and
- 20 e. a means of providing every family of a student in
21 prekindergarten, kindergarten, and first, second, and
22 third grade access to free online evidence-based
23 literacy instruction resources to support the
24 student's literacy development at home.

1 2. A student enrolled in kindergarten or first, second, or
2 third grade who exhibits a deficiency in reading at any time based
3 on the screening instrument administered pursuant to subsection A of
4 this section shall receive an individual reading intervention plan
5 no later than thirty (30) days after the identification of the
6 deficiency in reading. The reading intervention plan shall be
7 provided in addition to core reading instruction that is provided to
8 all students. The reading intervention plan shall:

- 9 a. describe the research-based reading intervention
10 services the student will receive to remedy the
11 deficiency in reading,
- 12 b. provide explicit and systematic instruction in
13 phonological awareness, decoding, fluency, vocabulary,
14 and comprehension, as applicable,
- 15 c. monitor the reading progress of each student's reading
16 skills throughout the school year and adjust
17 instruction according to the student's needs, and
- 18 d. continue until the student is determined to be meeting
19 grade-level targets in reading based on screening
20 instruments administered pursuant to subsection A of
21 this section or assessments identified for diagnostic
22 purposes and periodic monitoring pursuant to
23 subparagraph c of paragraph 1 of this subsection.

1 3. The reading intervention plan for each student identified
2 with a deficiency in reading shall be developed by a Student Reading
3 Proficiency Team and shall include supplemental instructional
4 services and supports. Each team shall be composed of:

5 a. the parent or legal guardian of the student,

6 b. the teacher assigned to the student who had
7 responsibility for reading instruction in that
8 academic year,

9 c. a teacher who is responsible for reading instruction
10 and is assigned to teach in the next grade level of
11 the student, and

12 d. a certified reading specialist, if one is available.

13 4. A school district shall notify the parent or legal guardian
14 of any student in kindergarten or first, second, or third grade who
15 exhibits a deficiency in reading at any time based on the screening
16 instrument administered pursuant to subsection A of this section.
17 The notification shall occur no later than thirty (30) days after
18 the identification of the deficiency in reading.

19 E. 1. Every school district shall adopt and implement a
20 district strong readers plan which has had input from school
21 administrators, teachers, and parents and legal guardians and if
22 possible a reading specialist, and which shall be submitted
23 electronically to and approved by the State Board of Education. The
24 plan shall be updated annually. School districts shall not be

1 required to electronically submit the annual updates to the Board if
2 the last plan submitted to the Board was approved and expenditures
3 for the program include only expenses relating to individual and
4 small group tutoring, purchase of and training in the use of
5 screening and assessment measures, summer school programs, and
6 Saturday school programs. If any expenditure for the program is
7 deleted or changed or any other type of expenditure for the program
8 is implemented, the school district shall be required to submit the
9 latest annual update to the Board for approval. The district strong
10 readers plan shall include a plan for each site which includes an
11 analysis of the data provided by the Oklahoma School Testing Program
12 and other reading assessments utilized as required in this section,
13 and which outlines how each school site will comply with the
14 provisions of the Strong Readers Act.

15 2. The State Board of Education shall adopt rules for the
16 implementation and evaluation of the provisions of the Strong
17 Readers Act. The evaluation shall include, but not be limited to,
18 an analysis of the data required in subsection L of this section.

19 F. 1. Any first-grade, second-grade, or third-grade student
20 who demonstrates proficiency in reading through a grade-level
21 appropriate screening instrument approved pursuant to subsection B
22 of this section shall not require a program of reading instruction
23 or an individual reading intervention plan. After a student has
24 demonstrated proficiency through a screening instrument, the

1 district shall provide notification to the parent or legal guardian
2 of the student that he or she has satisfied the requirements of the
3 Strong Readers Act. The district shall continue to monitor the
4 student in the next successive grade level to ensure he or she
5 maintains proficiency.

6 2. Beginning with the 2025-2026 school year, if a third-grade
7 student is identified at any point of the academic year as having a
8 significant reading deficiency, which shall be defined as not
9 meeting grade-level targets on a screening instrument administered
10 pursuant to subsection A of this section, the district shall provide
11 the student with intensive intervention services for the appropriate
12 amount of the instructional day consistent with the individual
13 reading intervention plan developed pursuant to paragraph 2 of
14 subsection D of this section and as determined by the Student
15 Reading Proficiency Team. Intensive intervention services shall
16 continue until the student demonstrates proficiency at his or her
17 grade level based on a screening instrument administered pursuant to
18 subsection A of this section.

19 G. Each school district shall annually report in an electronic
20 format to the State Department of Education, the Office of
21 Educational Quality and Accountability, and the Secretary of
22 Education the number of students in kindergarten through third grade
23 per grade level who exhibit grade-level reading proficiency, the
24 number of students per grade level who received intensive

1 intervention services pursuant to paragraph 2 of subsection F of
2 this section, the number of students per grade level who attended a
3 summer academy as provided for in Section 1210.508E of this title,
4 the number of students per grade level who exhibited improved
5 reading proficiency after completion of intensive intervention
6 services, and the number of students per grade level who are still
7 in need of intensive intervention services. The State Department of
8 Education shall publicly report the aggregate and district-specific
9 numbers submitted pursuant to this subsection on its website and
10 shall provide electronic copies of the report to the Governor,
11 Secretary of Education, President Pro Tempore of the Senate, Speaker
12 of the House of Representatives, and to the respective chairs of the
13 committees with responsibility for common education policy in each
14 legislative chamber.

15 H. The parent of any student who is found to have a reading
16 deficiency and is not meeting grade-level reading targets and has
17 been provided a program of reading instruction as provided for in
18 paragraph 1 of subsection D of this section shall be notified in
19 writing of the following:

20 1. That the student has been identified as having a substantial
21 deficiency in reading;

22 2. A description of the current services that are provided to
23 the student pursuant to subsection D of this section;

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1 3. A description of the proposed intensive intervention
2 services and supports that will be provided to the student that are
3 designed to remediate the identified area of reading deficiency as
4 provided for in paragraph 2 of subsection F of this section;

5 4. That a student who is promoted to the fourth grade shall
6 receive supplemental intensive intervention services;

7 5. Strategies for parents to use in helping their child succeed
8 in reading proficiency; and

9 6. The grade-level performance scores of the student.

10 I. No student may be assigned to a grade level based solely on
11 age or other factors that constitute social promotion.

12 J. 1. Each school district board of education shall annually
13 publish on the school website and report electronically to the State
14 Department of Education, the Office of Educational Quality and
15 Accountability, and the Secretary of Education by September 1 of
16 each year the following information on the prior school year:

17 a. the policies and procedures adopted by the school
18 district board of education to implement the
19 provisions of this section. The information submitted
20 shall include expenditures related to implementing the
21 provisions of this section, the number of staff
22 implementing the provisions of this section, and
23 average daily classroom time devoted to implementing
24 the provisions of this section,

- b. by grade, the number and percentage of all students in kindergarten through third grade who did not meet grade-level targets based on a screening instrument administered pursuant to subsection A of this section,
- c. by grade, the number and percentage of all students in kindergarten through third grade who have been enrolled in the district for fewer than two (2) years,
- d. by grade, the number and percentage of students in kindergarten through third grade who demonstrated grade-level proficiency based on a screening instrument administered pursuant to subsection A of this section, and
- e. by grade, the number and percentage of students in kindergarten through third grade who are on an individualized education program (IEP) in accordance with the Individuals with Disabilities Education Act (IDEA) and who demonstrated grade-level proficiency based on a screening instrument administered pursuant to subsection A of this section or an alternative assessment prescribed by the student's IEP.

2. The State Department of Education shall establish a uniform format for school districts to report the information required in this subsection. The format shall be developed with input from school districts and shall be provided not later than ninety (90)

1 days prior to the annual due date. The Department shall annually
2 compile the information required, along with state-level summary
3 information, and electronically report the information to the
4 public, the Governor, the Secretary of Education, the President Pro
5 Tempore of the Senate, and the Speaker of the House of
6 Representatives.

7 K. The State Department of Education shall provide technical
8 assistance as needed to aid school districts in administering the
9 provisions of the Strong Readers Act.

10 L. On or before January 31 of each year, the State Department
11 of Education shall electronically submit to the Governor, the
12 President Pro Tempore of the Senate, the Speaker of the House of
13 Representatives, and members of the committees with responsibility
14 over common education in both houses of the Legislature a Strong
15 Readers Report which shall include, but is not limited to, trend
16 data detailing three (3) years of data, disaggregated by student
17 subgroups to include economically disadvantaged, major racial or
18 ethnic groups, students with disabilities, and English language
19 learners, as appropriate for the following:

20 1. The statewide aggregate number and percentage of students in
21 kindergarten through third grade determined to be at risk for
22 reading difficulties compared to the total number of students
23 enrolled in each grade;

1 2. The statewide aggregate number and percentage of students in
2 kindergarten who continue to be at risk for reading difficulties as
3 determined by the year-end administration of the screening
4 instrument required subsection A of this section;

5 3. The statewide aggregate number and percentage of students in
6 kindergarten through third grade who have successfully completed
7 their program of reading instruction and are reading on grade level
8 as determined by the results of screening instruments administered
9 pursuant to subsection A of this section;

10 4. The statewide aggregate and district-specific number and
11 percentage of students that meet or do not meet grade-level targets
12 for reading based on screening instruments administered pursuant to
13 subsection A of this section;

14 5. The amount of funds received by each district for
15 implementation of the Strong Readers Act;

16 6. An evaluation and narrative interpretation of the report
17 data analyzing the impact of the Strong Readers Act on students'
18 ability to read at grade level;

19 7. The type of reading instruction practices and methods
20 currently being used by school districts in the state;

21 8. Socioeconomic information, access to reading resources
22 outside of school, and screening for and identification of learning
23 disabilities for students not reading at the appropriate grade level
24 in kindergarten and first through third grade;

1 9. By grade level, the types of intensive intervention efforts
2 being conducted by school districts for students who are not on an
3 IEP and who are not reading at the appropriate grade level and for
4 students who are on an IEP and who are not reading at the
5 appropriate grade level; and

6 10. Any recommendations for improvements or amendments to the
7 Strong Readers Act.

8 The State Department of Education may contract with an
9 independent entity for the reporting and analysis requirements of
10 this subsection.

11 M. Copies of the results of the screening instruments
12 administered pursuant to subsection A of this section shall be made
13 a part of the permanent record of each student.

14 SECTION 2. This act shall become effective July 1, 2025.

15 SECTION 3. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

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